

**BEFORE THE
FEDERAL MARITIME COMMISSION**

WASHINGTON, DC 20573

DOCKET NO. 22-21

MSRF, INC. v. YANG MING MARINE TRANSPORT CORPORATION

**MSRF’S MOTION FOR
CONFIDENTIAL TREATMENT OF CERTAIN MATERIALS**

Pursuant to 46 C.F.R. §§ 502.5(b) and 502.69, Complainant MSRF, Inc. (“MSRF”) hereby moves for confidential treatment of certain materials included with or referred to in MSRF’s Appendix in Support of its Motion for Summary Decision.

1. On September 13, 2022, Respondent Yang Ming Marine Transport Corporation (“Yang Ming”) filed a Motion for Confidential Treatment of Portions of its Original Verified Answer and Exhibits (the “Motion”) arguing that Yang Ming’s Exhibits to its Answer constituted a confidential contract between MSRF and Yang Ming. **Docket No. 22-21, Doc. No. 7.** Yang Ming further argued that each contract between the Parties contained sensitive, confidential business information, disclosure of which would cause commercial harm to the Parties. **Docket No. 22-21, Doc. No. 7.**

2. MSRF did not oppose Yang Ming’s Motion. **Docket No. 22-21, Doc. No. 7.**

3. As a result, the Commission entered an order granting Yang Ming’s Motion on September 15, 2022.

4. As part of the Appendix, MSRF attaches a Declaration of MSRF’s principal David Reich. The Declaration includes various exhibits, including the service contract between the parties and emails between the parties which Yang Ming designated as confidential.

5. MSRF will file a public and non-public version of the appendix with the public version omitting the confidential documents.

WHEREFORE, MSRF, Inc. respectfully requests that its Motion be granted, that it be given leave to file the confidential exhibits as part of a non-public version of the filing, and for all other relief deemed fair and proper.

Respectfully submitted,

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CERTIFICATE OF SERVICE

I certify that on April 21, 2023, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Initial Order of August 22, 2022.

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